

**IN THE COURT OF APPEALS OF  
THE STATE OF WASHINGTON  
DIVISION I**

ZACKARIAH JEREMIAH BENNETT,  
Appellant,

v.

MELVINA CATHERINE MANNING,  
Respondent.

**No. 870076**  
**King County Superior Court No. 23-2-11352-7**

**MOTION FOR RECONSIDERATION AND/OR MODIFICATION OF  
COMMISSIONERS' RULINGS**

COMES NOW, Appellant Zackariah Jeremiah Bennett, pro se, and respectfully moves this Court for reconsideration and/or modification of the Commissioners' rulings entered on January 21, 2025, and February 4, 2025, regarding Appellant's indigency motion pursuant to RAP 15.2. In support thereof, Appellant shows as follows:

**I. INTRODUCTION**

This Motion arises out of the conflict between the Commissioners' recent rulings and this Court's binding decision in *Bennett v. Manning*, No. 84951-4-I (Apr. 17, 2023). In *Bennett v. Manning*, the three-judge panel clearly held that, under RAP 15.2, after a party establishes indigency, the matter of determining entitlement to public funding must be forwarded to the Washington Supreme Court—not decided by the trial court or this Court. Despite that precedent, the Commissioners in the present case issued final determinations on Appellant's indigency without forwarding the matter as required.

**II. FACTUAL BACKGROUND AND PROCEDURAL HISTORY**

**A. Proper Filing and Diligent Compliance:**

Appellant followed the correct procedures to secure a waiver of filing fees and to submit an indigency motion. On August 14th and 15th, 2024, Appellant engaged in extensive correspondence (over 11 emails) with the court clerk and the trial court bailiff. During these communications, it was confirmed that

Appellant had secured the fee waiver from the Court of Appeals Clerk and that the remaining issue was the issuance of a ruling on the indigency motion.

**B. Lack of Subsequent Communication:**

Despite this diligent compliance, no further communication or ruling was provided regarding the indigency motion. This failure to act left Appellant without a timely resolution, which is particularly concerning given his status as an indigent, pro se litigant.

**C. Disparate Treatment and Equal Access to Justice:**

Appellant's experience suggests that his status as an indigent litigant, without counsel, may be adversely affecting his access to justice. The procedural hurdles and the finality of the Commissioners' rulings raise serious concerns about equal treatment under the law.

### III. ARGUMENT AND LEGAL BASIS FOR RELIEF

**A. Precedential Conflict with *Bennett v. Manning* (No. 84951- 4- I)**

In *Bennett v. Manning*, this Court stated:

"The Supreme Court—not the trial court—will then determine whether the party seeking review is entitled to review partially or wholly at public expense. RAP 15.2(d)... Here, the trial court erred by not determining Bennett's indigency or entering findings as required by RAP 15.2(c). And to the extent the trial court determined the ultimate issue of whether Bennett was entitled to review at public expense, it also erred by deciding an issue that RAP 15.2(c) expressly reserves for the Supreme Court."

The Commissioners' actions in 870076, by issuing final determinations without forwarding the matter to the Supreme Court, directly conflict with this controlling precedent and constitute a reversible error.

**B. Lack of Authority to Issue Final Determinations on Public Funding**

Under RAP 15.2(c)–(d), once indigency is established, the determination of entitlement to public funding must be made exclusively by the Washington Supreme Court. By acting to make a final determination, the Commissioners exceeded their

authority and denied Appellant the procedural protection afforded by established precedent.

### C. Supplemental Authority from *Abeda Jafar v. Webb* (No. 87009– 8)

The Supreme Court’s decision in *Abeda Jafar v. Webb*, No. 87009-8, reinforces the principle that once a litigant is determined to be indigent, all mandatory fees and surcharges must be waived. As explained on pages 12–14 of that opinion, the Court held that:

- The plain language of the applicable rule requires a complete waiver of fees once indigency is established.
- Partial waivers or impositions of even nominal surcharges violate the underlying purpose of ensuring equal access to justice for indigent litigants.
- The rule’s language and legislative history leave no room for discretionary or partial waivers when a litigant lacks the financial means to pay any fees.

While *Abeda Jafar* directly addresses GR 34 in a civil context, the underlying rationale—that indigent litigants must be provided unimpeded access to the courts without the burden of fees—parallels the protections intended by RAP 15.2. Thus, the Commissioners’ failure to fully waive fees and to forward the indigency determination to the Supreme Court is not only procedurally improper but also inconsistent with the established principle that indigent litigants must receive complete fee waivers.

### D. Discriminatory Impact on Indigent, Pro Se Litigants

The extensive communications demonstrating Appellant’s diligence, combined with the lack of any timely resolution, suggest that his status as an indigent, pro se litigant is adversely affecting his access to justice. Such disparate treatment reinforces the argument that the procedural handling in this case undermines the constitutional guarantee of equal protection and due process.

## IV. REQUEST FOR RELIEF

For the reasons stated above, Appellant respectfully requests that this Court:

1. **Reconsider and Vacate** the Commissioners’ rulings issued on January 21, 2025, and February 4, 2025.
2. **Modify the Rulings** to ensure compliance with *Bennett v. Manning*, No. 84951- 4- I, by directing that the indigency determination be forwarded to the Washington Supreme Court as required by RAP 15.2(d).
3. Acknowledge and address the potential discriminatory impact that the current procedural handling has on indigent, pro se litigants, thereby safeguarding Appellant’s right to equal access to justice.
4. Grant any further relief deemed just and proper.

## V. CONCLUSION

In light of the foregoing, Appellant respectfully requests that this Court grant this Motion for Reconsideration and/or Modification, ensuring that the proper procedural process is followed and that Appellant's rights as an indigent, pro se litigant are fully protected.

RESPECTFULLY SUBMITTED this 12th day of February, 2025.

**Zackariah Bennett**

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', with a stylized flourish at the end.

**Zackariah Jeremiah Bennett**

Appellant, Pro Se

17 Old Mountain Rd

Goldendale, WA 98620

[zackjbennett@gmail.com](mailto:zackjbennett@gmail.com)

Words: 951

LEA ENNIS  
Court Administrator/Clerk

*The Court of Appeals  
of the  
State of Washington*

DIVISION I  
One Union Square  
600 University Street  
Seattle, WA  
98101-4170  
(206) 464-7750

January 21, 2025

Zackariah Bennett  
17 Old Mountain Rd  
Goldendale, WA 98620  
zackjbennett@gmail.com

Nancy Ann Gass  
O.W. Hollowell & Associates  
PO Box 1041  
Carnation, WA 98014-1041  
carnationlaw@comcast.net

Case #: 870076  
Zackariah Bennett, Appellant v. Melvina Manning, Respondent  
King County Superior Court No. 23-2-11352-7

Counsel:

The following notation ruling by Commissioner Jennifer Koh of the Court was entered on January 21, 2025:

On December 4, 2024, Appellant Zackariah Bennett filed a motion requesting a ruling on his August 14, 2024 motion for an order of indigency, suggesting he seeks expenditure of public funds for the record on review. But, this Court waived its filing fee in my August 15, 2024 ruling. Under RAP 15.2, this Court is not authorized to waive any other expenses associated with preparing the record on review unless the case is of a type listed in RAP 15.2(b)(1). It does not appear that this case is one of the types listed in the rule. Accordingly, to the extent the present motion is a request for additional public funds under RAP 15.2, the motion is denied based on Appellant's failure to demonstrate a legal basis for his request.

Sincerely,



Lea Ennis  
Court Administrator/Clerk

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LEA ENNIS  
Court Administrator/Clerk

*The Court of Appeals  
of the  
State of Washington*

DIVISION I  
One Union Square  
600 University Street  
Seattle, WA  
98101-4170  
(206) 464-7750

February 4, 2025

Zackariah Bennett  
17 Old Mountain Rd  
Goldendale, WA 98620  
zackjbennett@gmail.com

Nancy Ann Gass  
O.W. Hollowell & Associates  
PO Box 1041  
Carnation, WA 98014-1041  
carnationlaw@comcast.net

Case #: 870076  
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King County Superior Court No. 23-2-11352-7

Counsel:

The following notation ruling by Commissioner Masako Kanazawa of the Court was entered on February 4, 2025:

Expenditure of public funds based on indigency is not available for this ordinary civil appeal. RAP 15.2. Appellant's request to waive the costs of clerk's papers to be paid to the superior court clerk is denied.

Sincerely,



Lea Ennis  
Court Administrator/Clerk

ejg

**IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON**

MELVINA CATHERINE MANNING,

Respondent,

v.

ZACKARIAH JEREMIAH BENNETT,

Appellant.

No. 84951-4-I

DIVISION ONE

UNPUBLISHED OPINION

PER CURIAM — Zackariah Bennett moved under RAP 15.2 for an order of indigency with regard to a separate appeal, No. 84450-4-I. In that appeal, Bennett seeks review of a domestic violence protection order protecting Melvina Manning.

The trial court denied Bennett’s motion, stating only, “GROUND’S NOT MET UNDER RAP 15.2. MOTION DENIED.” Bennett appeals the order denying his motion, and we now reverse.

Under RAP 15.2(a), “[a] party seeking review in the Court of Appeals . . . partially or wholly at public expense must move in the trial court for an order of indigency.” Because Bennett is not seeking review in a type of case listed in RAP 15.2(b), his motion was governed by RAP 15.2(c). See RAP 15.2(b) (setting forth the procedure when the moving party seeks review in (1) certain criminal prosecutions, (2) dependency and termination cases, (3) commitment proceedings, (4) civil contempt cases directing incarceration of the contemnor,

(5) certain habeas cases, and (6) “any other case in which the party has a constitutional or statutory right to counsel at all stages of the proceeding”); see also RAP 15.2(c) (setting forth the procedure for “cases not governed by [RAP 15.2(b)]”).

Under RAP 15.2(c), “the trial court shall determine in written findings the indigency, if any, of the party seeking review.” If it determines the party is not indigent, then it must deny the motion and must also enter “findings designating the funds or sources of funds available to the party to pay all of the expenses of review.” RAP 15.2(c)(1). If, on the other hand, the trial court determines that the party seeking review is indigent, it must enter findings to that effect and then forward them to the Supreme Court. RAP 15.2(c)(2). The Supreme Court—not the trial court—will then determine whether the party seeking review is entitled to review partially or wholly at public expense. RAP 15.2(d); see also RAP 15.2(c) (party seeking review must demonstrate a constitutional or statutory right to review at public expense, “the right to which will . . . be determined *by the Supreme Court*” (emphasis added)).

Here, the trial court erred by not determining Bennett’s indigency or entering findings as required by RAP 15.2(c). And to the extent the trial court determined the ultimate issue of whether Bennett was entitled to review at public expense, it also erred by deciding an issue that RAP 15.2(c) expressly reserves for the Supreme Court.

We reverse and remand to the trial court for further proceedings consistent with this opinion.



FOR THE COURT:

Dwyer, J.

Cohen, J.

Andrus, J.P.T.